

No. CHG 002/2022

February 24, 2023

Subject: Resolutions of the Board of Directors' Meeting regarding Dividend Payment and the schedule of the 2023 Annual General Meeting of Shareholders

To: Managing Director
The Stock Exchange of Thailand

Attachment : 1. Precautionary Measures and Guidelines for holding Annual General Meeting of Shareholders under the Circumstance of Coronavirus 2019 (COVID-19) Outbreak
2. COVID-19 Infection Risk Screening Form

The Meeting of the Board of Directors of Chularat Hospital Public Company Limited (**the Company**) No. 1/2023, held on 23 February 2023 at 09.30 a.m., at the meeting room of Chularat 3 International Hospital, No. 88/8-9 Moo 11, Bang Pla, Bang Phli, Samutprakan, has resolved regarding the matters relating to the 2023 Annual General Meeting of Shareholders (**2023 AGM**) as follows:

1. That the audited (consolidated) financial statements for the fiscal year ended as at 31 December 2022 be certified and approved.
2. That of the annual dividend payment for the fiscal year 2022 at the rate of Baht 0.16 per share, totalling Baht 1,760 million, or approximately equivalent to 63% of the net profit which is in line with the Company's dividend policy, be approved. The Board has declared an interim dividend in respect of the fiscal year 2022 of Baht 0.085 per share, the Board of Directors' Meeting No. 4/2022, held on 11 August 2022, resolved to approve the payment of interim dividends to shareholders at the rate of Baht 0.085 per share, totalling Baht 935 million. The interim dividends were accordingly paid to shareholders on 9 September 2022.

Therefore, it is proposed that the balance of the dividend at the rate of Baht 0.075 per share, totalling Baht 825 million, The list of shareholders entitled to receive dividends is scheduled on 2 May 2023 (Record Date). The dividend payment to the shareholders will be made on or before 19 May 2023.

The rights to receive such dividend are still uncertain unless the 2023 AGM grants its approval.

3. That the re-appointment of the directors named below who would retire by rotation to resume their directorships for another term, be approved:

- | | |
|---------------------------|----------|
| 1. Mr. Kriengsak Plussind | Director |
| 2. Mr. Apirum Panyapol | Director |
| 3. Dr. Suchai Laoveerawat | Director |
| 4. Mrs. Kobkul Panyapol | Director |

4. That the remuneration for the Board of Directors for the year 2023 be determined as follows:

(Unit : Baht)

Detail	2023 (as proposed)	2022
Meeting Allowance	Per meeting	Per meeting
Board of Director		
• Chairman	35,000	35,000
• Director	25,000	25,000
Audit Committee		
• Chairman	35,000	35,000
• Member (each)	25,000	25,000
Corporate Governance Committee		
• Chairman	25,000	25,000
• Member (each)	15,000	15,000
Nomination and Remuneration Committee		
• Chairman	25,000	25,000
• Member (each)	15,000	15,000
Corporate Investment and Risk Management Committee		
• Chairman	25,000	25,000
• Member (each)	15,000	15,000
Detail	2023 (as proposed)	2022
Annual Bonus *		
Board of Director	In an amount not exceeding, THB 5,000,000 per year	In an amount not exceeding, THB 5,000,000 per year
Audit Committee	-	-
Corporate Governance Committee	-	-
Nomination and Remuneration Committee	-	-
Corporate Investment and Risk Management Committee	-	-

Remarks: The Company will consider paying an annual bonus based on its operating results in an aggregate amount of Baht 5,000,000. The amount of bonus to be paid to each director will be calculated according to the period during which he/she has been in office.

5. That the appointment of Ms. Manee Rattanabunnakit, Certified Public Accountant No. 5313 and/or Mr. Kritsada Lerdwana, Certified Public Account No. 4958 and/or Mr. Vorapoj Amnuaypanich, Certified Public Account No.4640 of EY Office Limited to be the auditors of the Company with their total remuneration of up to Baht 4,900,000 not including out-of-pocket expenses, be approved.
6. Resolved to propose to the 2023 Annual General Meeting of Shareholders to consider and approve the amendment to the Articles of Association of the Company. The amended details are as follows:

Article	Existing Version	Proposed Version
17	The shareholders' meeting elect directors according to the following criteria and methods: (1) A shareholder has votes equal to the number of shares he/she holds. (2) Each shareholder may exercise his/her votes to elect one or more persons to be directors. In the event that several persons are elected as directors, the votes cannot be divided for any individual. (3) The persons receiving the highest number of votes in descending order shall be elected as directors, equivalent to the number of directors to be elected at that time. In the event that the persons elected in descending order have equal votes, which would exceed the number of directors to be elected at that time, the Chairman shall have a casting vote.	The shareholders' meeting elect directors <u>using the majority vote of the shareholders who attend the meeting and have the right to vote</u> according to the following criteria and methods: (1) A shareholder has votes equal to the number of shares he/she holds. (2) Each shareholder may exercise his/her votes to elect one or more persons to be directors. In the event that several persons are elected as directors, the votes cannot be divided for any individual. (3) The persons receiving the highest number of votes in descending order shall be elected as directors, equivalent to the number of directors to be elected at that time. In the event that the persons elected in descending order have equal votes, which would exceed the number of directors to be elected at that time, the Chairman shall have a casting vote.
22	In the event that the entire Board vacates the office, the retired directors shall remain in the position to carry on the Company business until the new Board takes the directorship, unless the court orders otherwise. In the event that the Board of Directors vacates the office by court order, the retired directors shall arrange the shareholders' meeting to appoint a new Board of Directors within one (1) month from the date of retirement. The meeting notice shall be sent to shareholders at least fourteen (14) days before the meeting date and be advertised in a newspapers at least three (3) days before the meeting date for a period of three (3) consecutive days.	In the event that the entire Board vacates the office, the retired directors shall remain in the position to carry on the Company business until the new Board takes the directorship, unless the court orders otherwise. In the event that the Board of Directors vacates the office by court order, the retired directors shall arrange the shareholders' meeting to appoint a new Board of Directors within one (1) month from the date of retirement. The meeting notice shall be sent to shareholders at least fourteen (14) days before the meeting date and be advertised in a newspaper <u>or via electronic means, according to the criteria and guidelines stipulated by laws.</u>
27	To convene the Board Meeting, the Chairman of the Board or assigned person shall send the meeting notice to the directors at least seven (7) days before the meeting date.	To convene the Board Meeting, the Chairman of the Board or assigned person shall send the meeting notice to the directors at least <u>three (3)</u> days before the meeting date.

Article	Existing Version	Proposed Version
	For any urgent cases, to preserve the right or benefit of the Company, the Company shall send the meeting notice by other means and set an earlier date for the meeting. In the event that two (2) or more directors request for the Board of Directors' meeting, the Chairman of the Board shall determine the meeting date within fourteen (14) days from the date of receiving such request.	For any urgent cases, to preserve the right or benefit of the Company, the Company shall send the meeting notice <u>via electronics means or other means</u> and set an earlier date for the meeting. <u>The Chairman of the Board shall call for a meeting of the Board. Nonetheless, in case of necessity or to preserve right or benefit of the Company, two (2) directors or more may jointly request the Chairman of the Board to convene the meeting. Such request must specify the subject and reason for consideration. In this case, the Chairman of the Board may arrange and determine the meeting date within fourteen (14) days from the date receiving such request.</u> <u>In the event that the Chairman of the Board does not proceed as described in paragraph two, the requesting directors may jointly convene and determine the meeting date in order to consider the proposed matters within fourteen (14) days from the due date as described in paragraph 2.</u> <u>In the event that there is no Chairman by any reasons, Vice Chairman of the Board shall convene the Board Meeting. In the event that there is no Vice Chairman of the Board, two (2) or more directors may jointly convene the Board Meeting.</u>
36	The Board of Directors must arrange an annual ordinary meeting of shareholders within four (4) months after the end of the Company's fiscal year. Any other shareholders' meetings shall be called an "extraordinary meeting". The Board of Directors may convene an extraordinary meeting at any time as deemed appropriate or when one or more shareholders holding no less than one-fifth (1/5) of the total issued shares or shareholders are not less than twenty-five (25) persons holding shares in aggregate of not less than one-tenth (1/10) of the total issued shares of the Company jointly prepare a written notice requesting the Board to convene an extraordinary meeting, provided that the written notice must clearly state the matters and reasons. The Board must arrange an extraordinary meeting within one (1) month	The Board of Directors must arrange an annual ordinary meeting of shareholders within four (4) months after the end of the Company's fiscal year. Any other shareholders' meetings shall be called an "extraordinary meeting". The Board of Directors may convene an extraordinary meeting at any time as deemed appropriate or when <u>one or more shareholders</u> holding no less than <u>ten (10) percent</u> of total issued shares jointly prepare a written notice requesting the Board to convene an <u>extraordinary meeting</u>, provided that the written notice must clearly state the matters and reasons. The Board of Directors <u>must arrange an extraordinary meeting within forty-five (45) days from the date of the receipt of such notice from the shareholders.</u>

Article	Existing Version	Proposed Version
	from the date of the receipt of such notice from the shareholders.	<u>In the event that the Board does not hold the meeting within forty-five (45) days from the date of the receipt of such notice from the shareholders, such shareholders or other shareholders holding shares in aggregate of the required number are able to call shareholders' meeting within forty-five (45) days from the date that the period in above paragraph has ended. This shareholders' meeting shall be deemed as the meeting called by the Board and the Company is responsible for all necessary expenses incurred for such meeting. However, if the number of shareholders in attendance does not form the required quorum, all shareholders who request for such shareholders' meeting shall be responsible for all expenses incurred and reimburse the same to the Company.</u> <u>In the event that shareholders themselves call an extraordinary meeting of shareholders, they may send an meeting notice via electronic means to shareholders who have expressed their intention or consent to receive such notice by electronic means, according to the criteria or guidelines stipulated by the Registrar.</u>
37	Shareholders' meeting Notice/Invitation Letter: The Board of Directors shall prepare a written notice specifying the place, date, time, agenda of the meeting and the matters to be proposed to the meeting with appropriated details and clearly specifying whether the proposed matters are for acknowledgment or for approval or for consideration, as the case may be, including the opinion of the Board of Directors on the said matters. The meeting notice shall be sent to the shareholders and the Registrar for acknowledgement at least seven (7) days before the meeting date. The meeting notice shall also be advertised in a newspaper at least three (3) days before the meeting date for a period of three (3) consecutive days.	Shareholders' meeting Notice/Invitation Letter: The Board of Directors shall prepare a written notice specifying the place, date, time, agenda of the meeting and the matters to be proposed to the meeting with appropriated details and clearly specifying whether the proposed matters are for acknowledgment or for approval or for consideration, as the case may be, including the opinion of the Board of Directors on the said matters. The meeting notice shall be sent to the shareholders and the Registrar for acknowledgement at least seven (7) days before the meeting date. The meeting notice shall also be advertised in a newspaper <u>or via electronic means, according to the criteria and guidelines stipulated by laws.</u>
39	In the shareholders' meeting, shareholder may assign another person (proxy) to attend the meeting and vote on his/her behalf. The proxy must be in a written form with the signature of the grantor, using the form/format specified by the Registrar. The proxy must be submitted at the meeting venue, to the Chairman of the Board or a person assigned by	In the meeting of shareholders, shareholder may assign another person (proxy) to attend the meeting and vote on his/her behalf. The proxy must be in a written form with the signature of the grantor, using the form/format specified by the Registrar. The proxy must be submitted at the meeting venue, to the Chairman of the Board or a person assigned by the Chairman of

Article	Existing Version	Proposed Version
	the Chairman of the Board before the proxy attends the meeting. The proxy should consist of the information as follows: A. Number of shares held by the grantor; B. Name of the proxy; C. Number of the meeting where the proxy is authorized to attend and vote	the Board before the proxy attends the meeting. <u>The proxy may be proceeded electronically via the secured and reliable platform by a shareholder and in accordance with the criteria specified by the Registrar</u> and should consist of the information as follows: A. Number of shares held by the grantor; B. Name of the proxy; C. Number of the meeting where the proxy is authorized to attend and vote
40	The shareholders' meeting shall proceed according to the order of the agenda specified in the meeting notice, unless the meeting resolves to change the order of the agenda with a vote of not less than two-thirds (2/3) of the number of shareholders present at the meeting. When the shareholders' meeting has finished the consideration of the agenda specified in the meeting notice, shareholders holding shares in aggregate of not less than one-third (1/3) of the total number of issued shares may request the meeting to consider matters other than those specified in the meeting notice. In the event that the meeting cannot finish considering the matters according to the agenda specified in the meeting notice or additional matters proposed by shareholders and need to postpone such consideration, the meeting shall determine the place, date and time of the next meeting and the Board of Directors shall send a meeting notice specifying the place, date, time and agenda of the meeting to shareholders at least seven (7) days prior to the meeting date. The meeting notice must also be advertised in a newspaper at least three (3) days prior to the meeting date for a period of three (3) consecutive days.	The shareholders' meeting shall proceed according to the order of the agenda specified in the meeting notice, unless the meeting resolves to change the order of the agenda with a vote of not less than two-thirds (2/3) of the number of shareholders present at the meeting. When the shareholders' meeting has finished the consideration of the agenda specified in the meeting notice, shareholders holding shares in aggregate of not less than one-third (1/3) of the total number of issued shares may request the meeting to consider matters other than those specified in the meeting notice. In the event that the meeting cannot finish considering the matters according to the agenda specified in the meeting notice or additional matters proposed by shareholders and need to postpone such consideration, the meeting shall determine the place, date and time of the next meeting and the Board of Directors shall send a meeting notice specifying the place, date, time and agenda of the meeting to shareholders at least seven (7) days prior to the meeting date. The meeting notice must also be advertised in a newspaper <u>or via electronic means, according to the criteria and guidelines stipulated by laws.</u>
47	When the Company wishes to reduce its capital, the Company must send a letter notifying a resolution of the capital reduction to the Company's debtors within fourteen (14) days from the date when the shareholders have voted for a resolution. The objection must be submitted within two (2) months from the date receiving the said letter. The resolution must be advertised in a newspaper within fourteen (14) days for three (3) consecutive days.	When the Company wishes to reduce its capital, the Company must send a letter notifying a resolution of the capital reduction to the Company's debtors within fourteen (14) days from the date when the shareholders have voted for a resolution. The objection must be submitted within two (2) months from the date receiving the said letter. The resolution must be advertised in a newspaper <u>or via electronic means, according to the criteria and guidelines stipulated by the Registrar</u> within fourteen (14) days.

Article	Existing Version	Proposed Version
48	The dividend payment can be made upon resolution of the shareholders' meeting or resolution of the Board of Directors only. For interim dividend payment, the payment shall be notified in a written notice to shareholders and such notice of dividend payment must be advertised via a newspaper for a period of three (3) consecutive days and the payment must be proceeded within one (1) month after the date of such resolution.	The dividend payment can be made upon resolution of the shareholders' meeting or resolution of the Board of Directors only. For interim dividend payment, the payment shall be notified in a written notice to shareholders and such notice of dividend payment must be advertised via a newspaper <u>or via electronic means, according to the criteria and guidelines stipulated by the laws.</u> The payment must be proceeded within one (1) month after the date of such resolution.
64	-None-	<u>In the event that the Board Meeting and/or shareholders' meeting is organized via electronic means, an invitation letter and meeting documents can be sent to directors and/or shareholders by electronic mail, which shall be delivered within the period specified by laws. The copies of invitation letter and meeting document shall be kept as evidence, which may be kept in electronic form.</u>
65	-None-	<u>The Company or the Board of Directors may send any letter or documents by electronic means to any directors, shareholders or creditors of the Company, who have expressed their intention or consent to receive such letter or document by electronic means. Such actions must be in accordance with the rules and procedures prescribed by the Registrar.</u>

7. That the 2023 Annual General Meeting of Shareholders be held on 21 April 2023 at 13:00 a.m., at Chularat 3 International Hospital's meeting room on 7th floor, 88/8-9 Moo 11 Theparak Rd. Km. 14.5., Bangpla, Bangplee, Samutprakarn to consider the following agenda:

1. To certify the minutes of the 2022 Annual General Meeting of Shareholders
2. To acknowledge the report on the Company's operating results for the year 2022
3. To consider and approve the audited (consolidated) financial statements for the fiscal year ending 31 December 2022
4. To acknowledge the interim dividend payment
5. To consider and approve the dividend payment derived from operating results for the fiscal year ended as at 31 December 2022
6. To consider and approve the appointment of directors in replacement of those retired by rotation

7. To consider and approve the determination of directors' remuneration
 8. To consider and approve the appointment of the auditors and the determination of the auditor fees for the year 2023
 9. To consider and approve the amendment to the Articles of Association of the Company
 10. Other matters (if any)
8. That 13 March 2023 be fixed as the record date for determining the shareholders' names who are entitled to attend the 2023 AGM.
9. That 28 April 2023 be fixed as the record date for determining the shareholders' names who are entitled to receive the dividend.

The Company is deeply concerned for the safety and well-being of shareholders and all stakeholders, who will be participating in the meeting. Therefore, the Company strongly requests for your cooperation to strictly follow the precautionary measures and guidelines for holding the Annual General Meeting of Shareholders under the circumstance of coronavirus 2019 (COVID-19) outbreak. The Company hereby apologizes for any inconveniences that may occur during the meeting due to the strict safety measures.

Please be informed accordingly.

Yours faithfully,

(Mr.Kriengsak Plussind)
Chairman of the Board

**The Company's Precautionary Measures and Guidelines for Holding the Annual General Meeting of Shareholders
under the Circumstance of Coronavirus 2019 as follows :**

1. Due to the Company's good corporate governance awareness, in terms of rights and equitable treatment of shareholders, the Company would disclose 2023 Annual General Meeting of Shareholders, together with related documents on the Company's website www.chularat.com as well as send the Invitation Letter and Proxy form B. in advanced as scheduled.

2. Shareholders can grant Proxy to the Company's Independent Directors to attend the Meeting instead of participating in persons.

2.1 Shareholders can grant a proxy to the Company's Independent Directors to attend and vote at the Meeting by using proxy form or downloading via the Company's website (Pre-casting the vote for each agenda is recommended) and sending back the proxy form and related documents or evidence to the Company through Office of the Executive Director (Sirinapha) No. 88/8-9 Moo 11, Bang Pla, Bang Phli, Samutparkan 10540.

2.2 Channels for submitting written questions in advance. Shareholders are welcomed to submit written questions relating to the Agendas in advance and the Company shall record questions and answers in the AGM Minutes of the Meeting. The channels as follows :

- ☐ Postal: sending back together with the proxy form by using business reply envelope.
- ☐ Email: companysecretary@chularat.com, ir@chularat.com
- ☐ Facsimile: 02 2131596

3. In case of shareholders who wish to attend the Meeting in person, the Company would like to request your cooperation to strictly follow the Company's measures and guidelines to prevent and minimize the risk of COVID-19 virus spread as follows:

3.1 All Attendees are required to fill in the COVID-19 Infection Risk Screening Form before entering the venue, and for those attendees who have recently visited or returned from any disease infected zones as notified by the Ministry of Public Health, including those who have had close contact with those who have visited or returned from any disease infected zones, or being found of having risky such as fever, cough, sore throat, sneezing, runny nose, will not be allowed to attend the Meeting. The Company would ask for your cooperation to strictly follow the recommendations from denied from entering the meeting. For those who cannot attend the meeting due to the reasons explained above are able to appoint the Company's Independent Directors as their proxies to attend and vote at the Meeting. Please also note that concealment of health information or traveling record could be considered as the violation of the Communicable Diseases Act B.E. 2558.

3.2 All attendees must go through thermoscan infrared camera at the health screening point before entering. Attendees who have body temperature of 37.5 degrees celsius or higher will not be allowed to attend the meeting. Attendees who passed the health screening are requested to put on a registration sticker, prepare and wear your facemask at all time and clean your hands by using the alcohol- based hand sanitizer gel, provided by the Company at the meeting areas to.

3.3 The Company reserves the rights to not allow any attendees, who do not pass the health screening or do not completed the COVID-19 Infection Risk Screening Form to enter the Meeting.

3.4 Neither snack box nor coffee or tea will be served in order to minimize personal direct contact in which may risk the infection of the disease.

4. If there are any changes in the situation or additional AGM-related measures from the Government Official, the Company will inform Shareholders via the Company's website (www.chularat.com).

As the above measures and guidelines, the Company would like to apologize for any inconvenience that may occurs, especially if a high number of meeting attendees cause a delay in the health screening and registration process.

Yours sincerely,

Chularat Hospital Public Company Limited

Corporate Secretary Telephone 02-0332900

แบบคัดกรองโรคไวรัสโคโรนา 2019

ก่อนเข้าร่วมประชุมสามัญผู้ถือหุ้นประจำปี 2566 ในวันศุกร์ที่ 21 เมษายน 2566 เวลา 13.00 น.
ณ ห้องประชุมชั้น 7 อาคารโรงพยาบาลจุฬารัตน์ 3 อินเตอร์ เลขที่ 88/8-9 หมู่ที่ 11 ถนนเทพารักษ์ กม.14.5
ตำบลบางปลา อำเภอบางพลี จังหวัดสมุทรปราการ 10540

COVID-19 Screening Form

Before attending to Annual General Meeting of Shareholders 2023 on Friday 21 April 2023 at 13.00 pm.

At Meeting Rooms of Chularat 3 International Hospital, No. 88/8-9 Moo 11, Bang Pla, Bang Phli, Samutprakan

ขอความร่วมมือท่านให้ข้อมูลที่ถูกต้องเป็นความจริง เพื่อประโยชน์ในการป้องกันการแพร่ระบาดของเชื้อไวรัสโควิด 19

We as for your corporation in providing the most accurate and truthful medical statements for effective prevention of the spreading of the disease.

ชื่อ - สกุล (Name – Surname).....หมายเลข โทรศัพท์ (Mobile Phone Number).....

1. ท่านมีไข้ ≥ 37.5 องศาหรือไม่ Do you have a fever? (≥ 37.5 C) ☐ ใช่ (Yes) ☐ ไม่ใช่ (No)
2. ท่านมีอาการดังต่อไปนี้หรือไม่ Do you have any of these symptoms?
 - ไอ Cough ☐ ใช่ (Yes) ☐ ไม่ใช่ (No)
 - เจ็บคอ Sore throats ☐ ใช่ (Yes) ☐ ไม่ใช่ (No)
 - น้ำมูกไหล Runny nose ☐ ใช่ (Yes) ☐ ไม่ใช่ (No)
 - เหนื่อยหอบ Shortness of breath ☐ ใช่ (Yes) ☐ ไม่ใช่ (No)
3. ท่านมีประวัติการเดินทางมาจากต่างประเทศ หรือมาจากพื้นที่ที่มีการระบาดของโรคติดเชื้อไวรัสโคโรนา 2019 ใน 14 วันที่ผ่านมาหรือไม่?
Have you traveled / transited from any counties except Thailand or areas with COVID-19 outbreak within the past 14 days?
☐ ใช่ (Yes) มาจากประเทศ / พื้นที่ (I have traveled to):
☐ ไม่ใช่ (No)
4. ท่านมีประวัติสัมผัสใกล้ชิดกับผู้ป่วยที่ต้องสงสัยการติดเชื้อไวรัสโคโรนา 2019 หรือไม่?
Have you been in physical contact with suspected COVID-19 patients?
☐ ใช่ (Yes)
☐ ไม่ใช่ (No)

หมายเหตุ หากพบว่าท่านมีไข้ ≥ 37.5 องศาหรือมีอาการอย่างใดอย่างหนึ่งตามที่บริษัทระบุไว้ หรือมีประวัติการเดินทางมาจากต่างประเทศหรือพื้นที่ที่มีการระบาดของ COVID-19 หรือมีประวัติสัมผัสใกล้ชิดกับผู้ป่วยที่ต้องสงสัยการติดเชื้อ COVID-19 บริษัทขอให้คุณมอบฉันทะแก่กรรมการอิสระของบริษัท ด้วยการกรอกและส่งหนังสือมอบฉันทะแบบ ข. ให้แก่เจ้าหน้าที่บริษัท แทนการเข้าร่วมประชุมและเดินทางกลับ พร้อมปฏิบัติตามคำแนะนำของกองควบคุมโรค กระทรวงสาธารณสุข

If you have a fever (≥ 37.5 °C); or any symptoms which indicates above; or traveled / transited from any counties except Thailand or the COVID-19 outbreak areas within the past 14 days; or have been in contact with suspected COVID-19 patients, The Company would like to kindly ask for your cooperation to grant proxy to an independent director to attend the meeting on your behalf, by filling the Proxy Form B and submit to our staff. Then you may then return safely to your resident and follow the guideline of the Department of disease control, Ministry of Public Health, Thailand.